NON-EXCLUSIVE REFERRAL ARRANGEMENT

Referral Partnership Agreement

Melhek Technologies · Kenenét Consultancy

INTERNAL REVIEW — NOT FOR SIGNATURE

This controlled review copy preserves the agreed 10% commission and excluded cost categories. Other marked provisions remain proposals until both Parties approve them in writing.

Party details · verification required

Party A — Melhek Technologies

Full legal name

Pending verification

Legal form · registration

Pending verification · Pending verification, if applicable

Business address

Pending verification

Authorized representative · position

Pending confirmation · Pending confirmation

Verified public notice email

melhektechnologies@gmail.com

Party B — Kenenét Consultancy

Full legal name

Pending verification

Legal form · registration

Pending verification · Pending verification, if applicable

Business address

Pending verification

Authorized representative · position

Pending confirmation · Pending confirmation

Verified public notice email

kenenetconsultancy@gmail.com

Agreed commercial terms

- 10% commission rate.
- Commission applies to eligible project implementation fees actually received by Melhek.
- Exclude VAT, third-party software licences, hardware, and other pass-through expenses.
- Pay commission proportionally to the corresponding client payments Melhek receives.
- A referral must be registered and accepted in writing for a named project.
- No automatic commission on unrelated future projects.

Pending bilateral approvals

The following values are proposals, not agreed terms. Each requires written confirmation by both Parties or an agreed replacement before an execution copy can be released.

01 · Prior activity lookback

Exclude an opportunity with documented substantive sales activity during the previous 90 days.

PENDING — BOTH PARTIES

02 · Referral response deadline

Melhek responds within five business days, paused while requested details are outstanding.

PENDING — BOTH PARTIES

03 · Commission payment deadline

Issue a statement and pay within 10 business days after eligible client funds clear.

PENDING — BOTH PARTIES

04 · Refund repayment deadline

Repay or authorize an agreed credit within 15 business days after supporting details are received.

PENDING — BOTH PARTIES

05 · Referral protection period

A project contract must be signed within 180 calendar days after written acceptance.

PENDING — BOTH PARTIES

06 · Initial and renewal term

An initial 12-month term, renewing for successive 12-month periods.

PENDING — BOTH PARTIES

07 · Termination and breach notice

30 days for convenience/non-renewal; 10 business days to cure a remediable material breach.

PENDING — BOTH PARTIES

08 · Mixed invoices and partial payments

Allocate unassigned discounts, credits, and partial payments proportionally across eligible and excluded line items.

PENDING — BOTH PARTIES

09 · Refund adjustment method

Return the related commission or offset it against later commission; repay if there is no offset.

PENDING — BOTH PARTIES

10 · Change orders and later scope

Only expressly accepted change orders are included; renewals, recurring services, separate projects, and unrelated work require separate written acceptance.

PENDING — BOTH PARTIES

11 · Payment method and currency

Use bank transfer; agree the currency and account in writing for each accepted project.

PENDING — BOTH PARTIES

12 · Confidentiality duration

Continue ordinary confidentiality duties for three years after termination; protect trade secrets while they remain trade secrets.

PENDING — BOTH PARTIES

13 · Dispute discussion period

Allow 30 days for good-faith discussion; mediation is optional by mutual agreement.

PENDING — BOTH PARTIES

Draft clauses

01 Parties and effective date

This Agreement is between the persons or legal entities identified for Party A and Party B in the Party Details schedule. Each business name shown there is a trading name only unless the verified legal identity states otherwise. The named person or entity—not an unverified brand name—is the contracting Party.

Each Party confirms that its details correctly identify the person or legal entity entering this Agreement and that its signatory is authorized to sign. The Effective Date is the date the last Party signs, after all pending commercial terms and party details have been approved and completed.

02 Purpose and nature of relationship

This Agreement governs Kenenét's non-exclusive referrals of prospective clients to Melhek for potential digital technology projects. A referral by Melhek to Kenenét, or commission for such a referral, requires a separate written agreement. Neither Party promises a minimum number of referrals, projects, or revenue.

The word "partnership" describes this referral arrangement only. The Parties intend to create no legal partnership, joint venture, employment, franchise, or agency relationship. Each Party remains responsible for its own business, personnel, expenses, and obligations.

03 Qualified referral

A "Qualified Referral" is a prospective client and specific project opportunity that meets all of the following conditions:

- Kenenét submits it to Melhek under Clause 4.
- The client and specific project or business need are identifiable.

- The referral is made with the prospective client's permission to share the relevant contact and project information.
- Melhek accepts the referral in writing.

PROPOSED · PENDING BILATERAL APPROVAL

A referral does not qualify if the same client-and-project opportunity was already accepted from another source, or Melhek had documented substantive sales activity for that specific opportunity during the proposed 90-day lookback. Mere prior awareness of a client does not exclude a distinct project. An existing client may be referred for a new project if that specific project meets these requirements and Melhek accepts it in writing.

Acceptance applies only to the client and project described in the registration. It does not create an automatic commission right over the client's other or future work.

04 Referral submission and acceptance

Kenenét will submit each referral to melhektechnologies@gmail.com, or to another referral channel Melhek later designates in writing, including:

- Client or organization name.
- Contact name and business contact details, where authorized.
- Brief description of the project need.
- Date and context of the introduction.
- Confirmation that the client permitted the referral and sharing of the submitted details.

Melhek will confirm receipt and either accept or reject the referral in writing. Acceptance must identify the client and project, record the acceptance date, and state the referral protection expiry date. Silence, an introduction alone, or a client's later contact with Melhek does not constitute acceptance.

PROPOSED · PENDING BILATERAL APPROVAL

Proposed response timing: Melhek responds within five business days. If more information is needed, Melhek may request it; the response period resumes when the requested information is supplied. No commission is earned unless acceptance is in writing.

05 Commission and eligible fees

For each Qualified Referral, Kenenét's commission is 10% of the Eligible Collected Implementation Fees for the accepted project. The 10% rate is an agreed commercial term and is not changed by this review copy.

"Eligible Collected Implementation Fees" means implementation fees related to the specific project accepted in writing, actually received by Melhek in cleared funds from the client, and remaining after project discounts or credits.

The commission base excludes:

- VAT.
- Third-party software or subscription licences.
- Hardware.
- All other pass-through expenses and reimbursements.

PROPOSED · PENDING BILATERAL APPROVAL

Proposed allocation: a markup or handling charge directly associated with an excluded pass-through item is excluded. For mixed invoices, unassigned project discounts or credits and partial payments are allocated proportionally across the resulting eligible and excluded line-item balances, unless a client remittance instruction identifies a different allocation and Melhek records it consistently.

COMMISSION EXAMPLE

If an invoice has ETB 100,000 in eligible implementation fees and ETB 100,000 in excluded costs, a payment of ETB 100,000 is 50% of the invoice. With proportional allocation, ETB 50,000 is eligible collected fees and the commission is ETB 5,000.

No commission is due on unpaid, waived, written-off, refunded, or cancelled amounts.

PROPOSED · PENDING BILATERAL APPROVAL

Proposed scope boundary: commission applies only to the project scope described in the accepted registration and client contract. Separate projects, renewals, recurring support or maintenance, and later unrelated work require separate written acceptance. A change order is included only if Melhek expressly accepts it in writing as commissionable and identifies the fee.

06 Statements, payment timing, and method

Melhek will provide a statement showing client payments received, excluded amounts, eligible collected amounts, and commission due.

PROPOSED · PENDING BILATERAL APPROVAL

Proposed deadline: Melhek issues the commission statement and pays within 10 business days after receiving the corresponding eligible client payment in cleared funds. For client installments, commission is paid proportionally after each installment clears. “Business Day” means a day on which commercial banks are generally open for ordinary business in Addis Ababa, excluding weekends and public holidays observed by those banks.

PROPOSED · PENDING BILATERAL APPROVAL

Proposed method: lawful bank transfer to Kenenét’s nominated account, in the currency agreed in writing for the accepted project. Each Party is responsible for its own tax filings. Any legally required withholding may be deducted with applicable evidence provided; VAT on the commission itself will be handled as required by law and against valid tax documentation.

07 Refunds, cancellations, and client non-payment

No commission is due on an amount Melhek does not receive. If Melhek refunds or credits a client after paying commission on that amount, Kenenét will return the corresponding commission or agree to a credit against future commissions.

PROPOSED · PENDING BILATERAL APPROVAL

Proposed timing: Kenenét repays or authorizes the agreed credit within 15 business days after receiving Melhek’s calculation and supporting statement. Any adjustment is limited to the commission attributable to the amount actually refunded or credited.

PROPOSED · PENDING BILATERAL APPROVAL

Proposed settlement method: if no future commission is available for an offset, repayment is made by bank transfer.

08 Responsibilities

Kenenét will:

- Make introductions honestly and with the client's permission.
- Provide accurate referral information.
- Avoid promising prices, delivery dates, features, or outcomes on Melhek's behalf.
- Not collect project payments for Melhek.
- Promptly disclose any potential conflict of interest relevant to a referral.

Melhek will:

- Decide independently whether to pursue, scope, price, contract for, or decline a referred project.
- Manage its client proposals, contracts, delivery, invoices, and collections.
- Provide commission statements for accepted referrals.
- Promptly notify Kenenét of material client payments, cancellations, or refunds affecting commission.

Neither Party guarantees that a referral will become a client or that a project will be profitable.

09 Confidentiality and client information

Each Party will protect the other Party's non-public commercial, technical, financial, and client information; use it only for this referral arrangement; and share it only with personnel or advisers who need it and are bound to protect it.

These obligations do not cover information the receiving Party can show was public without breach, already lawfully known, independently developed, or lawfully received from another source.

Each Party will handle personal information only for the referral purpose and in accordance with applicable Ethiopian law. Kenenét will obtain the prospective client's permission to share referral details with Melhek. On request or termination, each Party will return or securely delete the other Party's confidential information, subject to lawful retention requirements.

PROPOSED · PENDING BILATERAL APPROVAL

Proposed duration: ordinary confidentiality obligations continue for three years after termination. Trade secrets remain protected for as long as they qualify as trade secrets.

10 Non-exclusivity

Either Party may work with other referral sources, providers, and clients, including in similar fields, provided it complies with this Agreement and does not misuse the other Party's confidential information.

11 Independent contractors and no authority to bind

Each Party acts as an independent contractor. Neither Party may make a commitment, representation, warranty, financial promise, or client contract in the other Party's name.

Neither Party may represent that it is an agent, employee, legal partner, or authorized representative of the other.

12 Intellectual property and names

Each Party retains ownership of its names, logos, materials, software, and other intellectual property. No ownership is transferred by this Agreement.

A Party may use the other Party's name or logo in marketing only with that Party's prior written approval. Any permission to use a logo is limited, revocable, and subject to the owner's brand instructions.

13 Term and termination

PROPOSED · PENDING BILATERAL APPROVAL

Proposed term: this Agreement continues for an initial 12 months and renews for successive 12-month periods unless either Party gives 30 days' written notice of non-renewal.

PROPOSED · PENDING BILATERAL APPROVAL

Proposed termination terms: either Party may terminate for convenience on 30 days' written notice. A Party may terminate immediately for serious misconduct or unlawful conduct connected with this Agreement. For another material breach that can be remedied, the breaching Party has 10 business days after written notice to remedy it; the non-breaching Party may terminate if it remains uncured.

14 Accepted referrals after termination

Termination does not affect commissions already accrued or an accepted referral's remaining protection period, subject to the proposed terms below.

PROPOSED · PENDING BILATERAL APPROVAL

Proposed protection: each accepted referral is protected for 180 calendar days from Melhek's written acceptance. The client must sign a contract for the specific accepted project within that period. If it does, commission remains payable on eligible installment payments Melhek later receives under that contract, including payments after this Agreement ends or the protection period expires. If no contract is signed within the protection period, the referral expires and a later opportunity requires a new written registration and acceptance. Termination does not shorten an unexpired protection period.

No commission is created for referrals submitted but not accepted before termination, or for new projects or unrelated work not separately accepted in writing.

15 Disputes

The Parties will first attempt to resolve a dispute through good-faith discussion between authorized representatives.

PROPOSED · PENDING BILATERAL APPROVAL

Proposed process: allow 30 days for good-faith discussion. The Parties may proceed to mediation in Addis Ababa if both agree. If unresolved, either Party may refer the dispute to a court with competent jurisdiction in Ethiopia.

16 Governing law

This Agreement is governed by the laws of the Federal Democratic Republic of Ethiopia.

17 Amendments and entire agreement

This Agreement, including any referral accepted in writing under Clause 4, records the entire agreement between the Parties about this referral arrangement and replaces prior discussions on that subject.

Any amendment must be in writing and approved by authorized representatives of both Parties. If a provision is unenforceable, the remaining provisions continue to apply to the extent permitted by law.

18 Notices

Formal notices under this Agreement must be sent by email to the designated business addresses:

Melhek: melhektechnologies@gmail.com. Kenenét: kenenetconsultancy@gmail.com.

Either Party may update its notice email by written notice to the other. An email notice is received when delivery is confirmed or acknowledged, subject to mandatory legal rules.

19 Counterparts and electronic execution

The Parties may sign separate paper copies, which together form one Agreement. They may also use an electronic-signature method they mutually agree to use for this Agreement.

For electronic execution, the agreed method must record each signer’s identity and authority, clear intention to sign, the exact Agreement version, timestamps, and an audit record. A checkbox or typed name may form part of that process, but this Agreement does not characterize either alone as a qualified digital signature. The Parties should confirm the chosen method and its legal effect before execution.

No execution signatures are included in this review copy. Do not route it for signature. The page does not record approvals, referrals, or signatures.